



DECISION

Complaint No. : POS/4423/KE/239/2022

Name and Address of the Complainant : Mrs. Shaheen Razzak, House No. 290, Block-03 Street No.15, B.Y. Jung Coop. Housing Society, Near Askari Bank Bahadurabad, Karachi.

Name of the Agency Complained against : Sindh Building Control Authority (SBCA)

Name & Designation of Investigation Officer : Syed Farrukh Habib
Director, Regional Office, Karachi (East)

Subject :- **INACTION BY SBCA AGAINST ALLEGED ILLEGAL CONSTRUCTION AT ADJOINING PLOT CAUSING DAMAGES TO COMPLAINANTS HOUSE.**

THE COMPLAINT

Mrs. Shaheen Razzak (widow of late Abdul Razzak), resident of House No. 290, Street No. 15, Block-3, B.Y. Jung Cooperative Housing Society, Bahadurabad, Karachi, lodged a complaint against the Sindh Building Control Authority (SBCA). She alleged that despite repeated representations, SBCA failed to take timely action against illegal construction being carried out on the adjoining Plot No. 291, Block-3, B.Y. Jung CHS. She stated that the unregulated and unauthorized demolition and construction activities had caused structural damage to her residence, including cracks in plinth beams, boundary wall, and internal masonry walls, encroachment into her property, damage to utility lines, and violations of multiple provisions of the Karachi Building & Town Planning Regulations (KB&TPR). The complainant also reported threats by the plot owner's representatives and requested disciplinary and legal action against violators, along with compensation for damages. Having received no effective action by the SBCA, she sought intervention of this office.

PROCEEDINGS

2. The complaint was admitted under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), and the complainant submitted mandatory Affidavit on Form "A" along with other relevant documents. Report was called from the Agency. In response, the Assistant Director, District East, SBCA, vide letter dated 13.02.2023, stated that the building plan for Plot No. 291, Block-3, B.Y. Jung CHS, Karachi, was approved for Ground + 2 floors on 09.03.2022. On complaint, a Show Cause Notice was issued on 05.09.2022. After completion of the specified period, demolition action was carried out on 09.09.2022, after which construction work was stopped. The agency further informed that the matter is subjudice before the Hon'ble Sindh High Court in C.P. No. 1864/2022. The complainant confirmed filing a petition before the Hon'ble Sindh High Court concerning the same matter.

Contd....

FINDINGS

3. Examination of the case record, correspondence, and reports reveals that SBCA has taken certain enforcement actions, including issuance of notice and partial demolition. Both the Agency and complainant confirm that the matter is pending adjudication before the Hon'ble Sindh High Court in C.P. No. 1864/2022. The complainant has also submitted a copy of the court petition for official record.

DECISION

4. In view of above, the complaint is disposed of as subjudice since the matter is pending before the Hon'ble Sindh High Court (C.P. No. 1864/2022).

Given under my hand and seal of the office



Sd /-

(Muhammad Sohail Rajput)
Sitara-e-Imtiaz. PAS
Ombudsman Sindh

Karachi, dated 05.12, 2025